poration aggregate conſtituted without a head[q]: as the collegiate church of Southwell in Nottinghamſhire, which conſiſts only of prebendaries; and the governors of the Charter-houſe, London, who have no preſident or ſuperior, but are all of equal authority. In aggregate corporations alſo, the act of the major part is eſteemed the act of the whole[r]. By the civil law this major part muſt have conſiſted of two thirds of the whole; elſe no act could be performed[s]: which perhaps may be one reaſon why they required three at leaſt to make a corporation. But, with us, *any* majority is ſufficient to determine the act of the whole body. And whereas, notwithſtanding the law ſtood thus, ſome founders of corporations had made ſtatutes in derogation of the common law, making very frequently the unanimous aſſent of the ſociety to be neceſſary to any corporate act; (which king Henry VIII found to be a great obſtruction to his projected ſcheme of obtaining a ſurrender of the lands of eccleſiaſtical corporations) it was therefore enacted by ſtatute 33 Hen. VIII. c. 27. that all private ſtatutes ſhall be utterly void, whereby any grant or election, made by the head, with the concurrence of the major part of the body, is liable to be obſtructed by any one or more, being the minority: but this ſtatute extends not to any negative or neceſſary voice, given by the founder to the head of any ſuch ſociety.

WE before obſerved that it was incident to every corporation, to have a capacity to purchaſe lands for themſelves and ſucceſſors: and this is regularly true at the common law[t]. But they are excepted out of the ſtatute of wills[u]; ſo that no deviſe of lands to a corporation by will is good: except for charitable uſes, by ſtatute 43 Eliz. c. 4[w]. And alſo, by a great variety of ſtatutes[x], their privilege even of purchaſing from any living grantor is greatly abridged; ſo that now a corporation, either eccleſiaſtical or lay,

[q] 10 Rep. 30.
[r] Bro. *Abr. tit. Corporation.* 31, 34.
[s] *Ff.* 3. 4. 3.
[t] 10 Rep. 30.
[u] 34 Hen. VIII. c. 5.
[w] Hob. 136.
[x] From *magna carta*, 9 Hen. III. c. 36. to 9 Geo. II. c. 36.

muſt

muſt have a licence from the king to purchaſe[y], before they can exert that capacity which is veſted in them by the common law: nor is even this in all caſes ſufficient. Theſe ſtatutes are generally called the ſtatutes of *mortmain*; all purchaſes made by corporate bodies being ſaid to be purchaſes in mortmain, *in mortua manu:* for the reaſon of which appellation ſir Edward Coke[z] offers many conjectures; but there is one which ſeems more probable than any that he has given us: viz. that theſe purchaſes being uſually made by eccleſiaſtical bodies, the members of which (being profeſſed) were reckoned dead perſons in law, land therefore, holden by them, might with great propriety be ſaid to be held *in mortua manu.*

I SHALL defer the more particular expoſition of theſe ſtatutes of mortmain, till the next book of theſe commentaries, when we ſhall conſider the nature and tenures of eſtates; and alſo the expoſition of thoſe diſabling ſtatutes of queen Elizabeth, which reſtrain ſpiritual and eleemoſynary corporations from aliening ſuch lands as they are preſent in legal poſſeſſion of: only mentioning them in this place, for the ſake of regularity, as ſtatutable incapacities incident and relative to corporations.

THE general *duties* of all bodies politic, conſidered in their corporate capacity, may, like thoſe of natural perſons, be reduced to this ſingle one; that of acting up to the end or deſign, whatever it be, for which they were created by their founder.

III. I PROCEED therefore next to enquire, how theſe corporations may be *viſited.* For corporations being compoſed of individuals, ſubject to human frailties, are liable, as well as private perſons, to deviate from the end of their inſtitution. And for that reaſon the law has provided proper perſons to viſit, enquire into, and correct all irregularities that ariſe in ſuch corporations, either

[y] By the civil law a corporation was incapable of taking lands, unleſs by ſpecial privilege from the emperor: *collegium, ſi nullo ſpeciali privilegio ſubnixum ſit, haereditatem capere non poſſe, dubium non eſt.* *Cod.* 6. 24. 8.

[z] 1 Inſt. 2.

ſole or aggregate, and whether eccleſiaſtical, civil, or eleemoſynary. With regard to all eccleſiaſtical corporations, the ordinary is their viſitor, ſo conſtituted by the canon law, and from thence derived to us. The pope formerly, and now the king, as ſupreme ordinary, is the viſitor of the arch-biſhop or metropolitan; the metropolitan has the charge and coercion of all his ſuffragan biſhops; and the biſhops in their ſeveral dioceſes are the viſitors of all deans and chapters, of all parſons and vicars, and of all other ſpiritual corporations. With reſpect to all lay corporations, the founder, his heirs, or aſſigns, are the viſitors, whether the foundation be civil or eleemoſynary; for in a lay incorporation the ordinary neither can nor ought to viſit [a].

I KNOW it is generally ſaid, that civil corporations are ſubject to no viſitation, but merely to the common law of the land; and this ſhall be preſently explained. But firſt, as I have laid it down as a rule that the founder, his heirs, or aſſigns, are the viſitors of all lay-corporations, let us enquire what is meant by the *founder*. The founder of all corporations in the ſtricteſt and original ſenſe is the king alone, for he only can incorporate a ſociety: and in civil incorporations, ſuch as mayor and commonalty, &c, where there are no poſſeſſions or endowments given to the body, there is no other founder but the king: but in eleemoſynary foundations, ſuch as colleges and hoſpitals, where there is an endowment of lands, the law diſtinguiſhes, and makes two ſpecies of foundation; the one *fundatio incipiens*, or the incorporation, in which ſenſe the king is the general founder of all colleges and hoſpitals; the other *fundatio perficiens*, or the dotation of it, in which ſenſe the firſt gift of the revenues is the foundation, and he who gives them is in law the founder: and it is in this laſt ſenſe that we generally call a man the founder of a college or hoſpital [b]. But here the king has his prerogative: for, if the king and a private man join in endowing an eleemoſynary foundation, the king alone ſhall be the founder of it. And, in general, the king being the ſole founder of all civil corporations, and the en-

[a] 10 Rep. 31. [b] 10 Rep 33.

dower

dower the perficient founder of all eleemoſynary ones, the right of viſitation of the former reſults, according to the rule laid down, to the king; and of the latter, to the patron or endower.

THE king being thus conſtituted by law the viſitor of all civil corporations, the law has alſo appointed the place, wherein he ſhall exerciſe this juriſdiction: which is the court of king's bench; where, and where only, all miſbehaviours of this kind of corporations are enquired into and redreſſed, and all their controverſies decided. And this is what I underſtand to be the meaning of our lawyers, when they ſay that theſe civil corporations are liable to no viſitation; that is, that the law having by immemorial uſage appointed them to be viſited and inſpected by the king their founder, in his majeſty's court of king's bench, according to the rules of the common law, they ought not to be viſited elſewhere, or by any other authority. And this is ſo ſtrictly true, that though the king by his letters patent had ſubjected the college of phyſicians to the viſitation of four very reſpectable perſons, the lord chancellor, the two chief juſtices, and the chief baron; though the college had accepted this charter with all poſſible marks of acquieſcence, and had acted under it for near a century; yet, in 1753, the authority of this proviſion coming in diſpute, on an appeal preferred to theſe ſuppoſed viſitors, they directed the legality of their own appointment to be argued: and, as this college was a mere civil, and not an eleemoſynary foundation, they at length determined, upon ſeveral days ſolemn debate, that they had no juriſdiction as viſitors; and remitted the appellant (if aggrieved) to his regular remedy in his majeſty's court of king's bench.

AS to eleemoſynary corporations, by the dotation the founder and his heirs are of common right the legal viſitors, to ſee that that property is rightly employed, which would otherwiſe have deſcended to the viſitor himſelf: but, if the founder has appointed and aſſigned any other perſon to be viſitor, then his aſſignee ſo appointed is inveſted with all the founder's power, in excluſion of

of his heir. Eleemoſynary corporations are chiefly hoſpitals, or colleges in the univerſity. Theſe were all of them conſidered by the popiſh clergy, as of mere eccleſiaſtical juriſdiction: however, the law of the land judged otherwiſe; and, with regard to hoſpitals, it has long been held[c], that if the hoſpital be ſpiritual, the biſhop ſhall viſit; but if lay, the patron. This right of lay patrons was indeed abridged by ſtatute 2 Hen. V. c. 1. which ordained, that the ordinary ſhould viſit *all* hoſpitals founded by ſubjects; though the king's right was reſerved, to viſit by his commiſſioners ſuch as were of royal foundation. But the ſubject's right was in part reſtored by ſtatute 14 Eliz. c. 5. which directs the biſhop to viſit ſuch hoſpitals only, where no viſitor is appointed by the founders thereof: and all the hoſpitals founded by virtue of the ſtatute 39 Eliz. c. 5. are to be viſited by ſuch perſons as ſhall be nominated by the reſpective founders. But ſtill, if the founder appoints nobody, the biſhop of the dioceſe muſt viſit[d].

COLLEGES in the univerſities (whatever the common law may now, or might formerly, judge) were certainly conſidered by the popiſh clergy, under whoſe direction they were, as *eccleſiaſtical*, or at leaſt as *clerical*, corporations; and therefore the right of viſitation was claimed by the ordinary of the dioceſe. This is evident, becauſe in many of our moſt antient colleges, where the founder had a mind to ſubject them to a viſitor of his own nomination, he obtained for that purpoſe a papal bulle to exempt them from the juriſdiction of the ordinary; ſeveral of which are ſtill preſerved in the archives of the reſpective ſocieties. And I have reaſon to believe, that in one of our colleges, (wherein the biſhop of that dioceſe, in which Oxford was formerly comprized, has immemorially exerciſed viſitatorial authority) there is no ſpecial viſitor appointed by the college ſtatutes: ſo that the biſhop's interpoſition can be aſcribed to nothing elſe, but his ſuppoſed title as ordinary to viſit this, among other eccleſiaſtical foundations. And it is not impoſſible, that the number of col-

[c] Yearbook, 8 Edw. III. 28. 8 Aſſ. 29. [d] 2 Inſt. 725.

leges

leges in Cambridge, which are viſited by the biſhop of Ely, may in part be derived from the ſame original.

BUT, whatever might be formerly the opinion of the clergy, it is now held as eſtabliſhed common law, that colleges are lay-corporations, though ſometimes totally compoſed of eccleſiaſtical perſons; and that the right of viſitation does not ariſe from any principles of the canon law, but of neceſſity was created by the common law[e]. And yet the power and juriſdiction of viſitors in colleges was left ſo much in the dark at common law, that the whole doctrine was very unſettled till king William's time; in the ſixth year of whoſe reign, the famous caſe of *Philips and Bury* happened[f]. In this the main queſtion was, whether the ſentence of the biſhop of Exeter, who (as viſitor) had deprived doctor Bury the rector of Exeter college, could be examined and redreſſed by the court of king's bench. And the three puiſne judges were of opinion, that it might be reviewed, for that the viſitor's juriſdiction could not exclude the common law; and accordingly judgment was given in that court. But the lord chief juſtice, Holt, was of a contrary opinion; and held, that by the common law the office of viſitor is to judge according to the ſtatutes of the college, and to expel and deprive upon juſt occaſions, and to hear all appeals of courſe; and that from him, and him only, the party grieved ought to have redreſs; the founder having repoſed in him ſo entire a confidence, that he will adminiſter juſtice impartially, that his determinations are final, and examinable in no other court whatſoever. And, upon this, a writ of error being brought in the houſe of lords, they reverſed the judgment of the court of king's bench, and concurred in ſir John Holt's opinion. And to this leading caſe all ſubſequent determinations have been conformable. But, where the viſitor is under a temporary diſability, there the court of king's bench will interpoſe, to prevent a defect of juſtice. Thus the biſhop of Cheſter is viſitor of Mancheſter college: but, happening alſo to be warden, the

[e] Lord Raym. 8.

[f] Lord Raym. 5. 4 Mod. 106. Shower. 35. Skinn. 407. Salk. 403. Carthew. 180.

court

court held that his power was ſuſpended during the union of thoſe offices; and therefore iſſued a peremptory *mandamus* to him, as warden, to admit a perſon intitled to a chaplainſhip[g]. Alſo it is ſaid[h], that if a founder of an eleemoſynary foundation appoints a viſitor, and limits his juriſdiction by rules and ſtatutes, if the viſitor in his ſentence exceeds thoſe rules, an action lies againſt him; but it is otherwiſe, where he miſtakes in a thing within his power.

IV. WE come now, in the laſt place, to conſider how corporations may be diſſolved. Any particular member may be diſfranchiſed, or loſe his place in the corporation, by acting contrary to the laws of the ſociety, or the laws of the land; or he may reſign it by his own voluntary act[i]. But the body politic may alſo itſelf be diſſolved in ſeveral ways; which diſſolution is the civil death of the corporation: and in this caſe their lands and tenements ſhall revert to the perſon, or his heirs, who granted them to the corporation; for the law doth annex a condition to every ſuch grant, that if the corporation be diſſolved, the grantor ſhall have the lands again, becauſe the cauſe of the grant faileth[k]. The grant is indeed only during the life of the corporation; which *may* endure for ever: but, when that life is determined by the diſſolution of the body politic, the grantor takes it back by reverſion, as in the caſe of every other grant for life. And hence it appears how injurious, as well to private as public rights, thoſe ſtatutes were, which veſted in king Henry VIII, inſtead of the heirs of the founder, the lands of the diſſolved monaſteries. The debts of a corporation, either to or from it, are totally extinguiſhed by it's diſſolution; ſo that the members thereof cannot recover, or be charged with them, in their natural capacities[l]: agreeable to that maxim of the civil law[m], "*ſi quid univerſitati* "*debetur, ſingulis non debetur; nec, quod debet univerſitas, ſinguli* "*debent.*"

[g] Stra. 797.
[h] 2 Lutw. 1566.
[i] 11 Rep. 98.
[k] Co. Litt. 13.
[l] 1 Lev. 237.
[m] *Ff.* 3. 4. 7.

A CORPO-

A CORPORATION may be diſſolved, 1. By act of parliament, which is boundleſs in it's operations; 2. By the natural death of all it's members, in caſe of an aggregate corporation; 3. By ſurrender of it's franchiſes into the hands of the king, which is a kind of ſuicide; 4. By forfeiture of it's charter, through negligence or abuſe of it's franchiſes; in which caſe the law judges that the body politic has broken the condition upon which it was incorporated, and thereupon the incorporation is void. And the regular courſe is to bring a writ of *quo warranto*, to enquire by what warrant the members now exerciſe their corporate power, having forfeited it by ſuch and ſuch proceedings. The exertion of this act of law, for the purpoſes of the ſtate, in the reigns of king Charles and king James the ſecond, particularly by ſeiſing the charter of the city of London, gave great and juſt offence; though perhaps, in ſtrictneſs of law, the proceedings were ſufficiently regular: but now [n] it is enacted, that the charter of the city of London ſhall never more be forfeited for any cauſe whatſoever. And, becauſe by the common law corporations were diſſolved, in caſe the mayor or head officer was not duly elected on the day appointed in the charter or eſtabliſhed by preſcription, it is now provided [o], that for the future no corporation ſhall be diſſolved upon that account; and ample directions are given for appointing a new officer, in caſe there be no election, or a void one, made upon the charter or preſcriptive day.

[n] Stat. 2 W. & M. c. 8.

[o] Stat. 11 Geo. I. c. 4.

THE END OF THE FIRST BOOK.